

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

SUMMONS

ERIC ROMULUS,

Index No.:

Plaintiff,

The Basis of Venue is:
Location of Incident

-against-

THE CITY OF NEW YORK, DETECTIVE YOSEF
AISAA, Tax No. 946723, DETECTIVE DANIEL
MINERO, Tax No. 957862, SERGEANT DANIEL
PERRINO, Tax No. 944889 and POLICE OFFICERS
JOHN DOES #s 1-10 (names and numbers of whom are
unknown at present),

Plaintiff designates Kings
County as the place of trial.

Defendants.

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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
July 31, 2024

Yours, etc.

David Hazan

JACOBS & HAZAN, PLLC
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE YOSEF AISAA, Tax No. 946723, 70th Precinct Detective Squad
DETECTIVE DANIEL MINERO, Tax No. 957862, Warrant Section
SERGEANT DANIEL PERRINO, Tax No. 944889, DB Brooklyn South Video
Collection Team

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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ERIC ROMULUS,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE YOSEF
AISAA, Tax No. 946723, DETECTIVE DANIEL
MINERO, Tax No. 957862, SERGEANT DANIEL
PERRINO, Tax No. 944889 and POLICE OFFICERS
JOHN DOES #s 1-10 (names and numbers of whom are
unknown at present),

Defendants.

----- X

Plaintiff ERIC ROMULUS, by his attorneys, Jacobs & Hazan, PLLC, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on or about July 31, 2021, at 4:00 am, plaintiff was lawfully present inside of his apartment located at 3901 Nostrand Avenue at which time the defendant police officers forcefully entered plaintiff's apartment, unlawfully searched, handcuffed, and falsely arrested plaintiff without probable cause or legal justification. The defendant officers also unlawfully searched plaintiff's apartment, and seized plaintiff's vehicle without any legal basis. The defendant police officers transported plaintiff to the 70th Precinct against his will whereat plaintiff was unlawfully searched, fingerprinted, photographed, and detained in a filthy holding cell for many hours. Plaintiff spoke with defendants at the 70th Precinct whereat plaintiff was informed that the vehicle he drives was involved in a serious crime where someone exited plaintiff's vehicle and fired a gun at another individual. The defendants told plaintiff that they were arresting him and charging him with attempted murder, and unlawful possession of a firearm, amongst other crimes. The defendants advised plaintiff that the crime occurred a couple of weeks earlier on July 14, 2021. Plaintiff advised defendants that he rented his vehicle to another individual during that time period and did not even have possession of the vehicle. Plaintiff told the defendants the name of the person who rented the vehicle on the

date the alleged crime was committed. Plaintiff told the officers that he could document the fact that he rented the vehicle to the individual he identified to the officers, at the time the crime occurred. However, the defendant police officers did not appear to believe plaintiff or take his alibi seriously. The defendants continued to detain plaintiff without probable cause. The defendants provided the Kings County District Attorney's Office with false, misleading, and incomplete evidence to explain why the defendants believed that had probable cause to arrest plaintiff and charge him with felony offenses. After plaintiff was unlawfully detained at the precinct for many hours the enormous stress he had caused him to feel very ill and seek medical attention. He experienced severe anxiety and emotional distress because he was arrested by defendants and charged with extremely serious crimes that he did not commit. Plaintiff was transported to Kings County Hospital to receive a medical evaluation. After plaintiff was released from the hospital he was transported to Kings County Central Booking whereat the unlawful detention continued for many hours. Plaintiff was arraigned in Kings County Criminal Court on August 1, 2021 and charged with committing crimes he did not commit and for which defendants lacked probable cause to accuse him of committing, including but not limited to Attempted Murder in the Second Degree, Attempted Assault in the First and Second Degrees, Criminal Possession of a Weapon in the Second, Third, and Fourth Degrees. At arraignment plaintiff was remanded into the custody of the New York City Department of Corrections and was sent to the Otis Bantum Correctional Center on Riker's Island whereat the conditions for the prisoners were extremely dangerous and inhumane. Plaintiff was attacked and injured by other prisoners as well as correction officers. Plaintiff was released from Riker's Island on his own recognizance on August 5, 2021, because he was not indicted by a grand jury. Plaintiff was extremely traumatized by his experience at Riker's Island, and he was admitted to the hospital for psychological treatment for 2-3 days because he had suicidal thoughts, was talking to himself, and he was seeing things that were not actually there. After plaintiff was released from the hospital he was required to appear in criminal court on a couple of additional occasions before all charges were dismissed in their entirety on December 2, 2021, after the Court granted a motion to dismiss and seal the charges in their entirety. The criminal prosecution terminated in plaintiff's favor. Plaintiff also paid money to retain a private criminal attorney to represent him in the underlying criminal matter. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene. Plaintiff was deprived of his Constitutional and common law rights when the individual defendants unlawfully searched, falsely arrested, maliciously prosecuted, subjected plaintiff to the use of excessive force, and denied plaintiff the right to due process in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff ERIC ROMULUS is a resident of the state of New York.
3. Defendant DETECTIVE YOSEF AISAA, Tax No. 946723, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant DETECTIVE YOSEF AISAA, Tax No. 946723, was at all times relevant herein, assigned to the 70th Precinct Detective Squad.

5. Defendant DETECTIVE YOSEF AISAA, Tax No. 946723, is being sued in his individual and official capacity.

6. Defendant DANIEL MINERO, Tax No. 957862, Warrant Section, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant DANIEL MINERO, Tax No. 957862, Warrant Section, was at all times relevant herein, assigned to the Warrant Section.

8. Defendant DANIEL MINERO, Tax No. 957862, Warrant Section, is being sued in her individual and official capacity.

9. Defendant SERGEANT DANIEL PERRINO, Tax No. 944889, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant SERGEANT DANIEL PERRINO, Tax No. 944889, was at all times relevant herein, assigned to the 70th Precinct Detective Squad, and is presently assigned to the DB Brooklyn South Video Collection Team.

11. Defendant SERGEANT DANIEL PERRINO, Tax No. 944889, is being sued in his individual and official capacity.

12. Defendant New York City Police Officers John Does #s 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Defendants New York City Police Officers John Does #s 1-10 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

15. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and

the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

16. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

17. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

18. By way of background, on or about July 14, 2021, individuals in a red BMW allegedly double parked in front of another vehicle in the vicinity of 1501 Foster Avenue, Brooklyn New York, and when the driver of the vehicle it was double parked in front of was walking back to his vehicle an individual exited the red BMW and fired a gun at the individual walking back to his vehicle.

19. The only evidence that defendants possessed regarding the identity of the perpetrator of the crime was that they knew the make and model of the red BMW that was used to travel to and from the crime scene to commit the crime.

20. Plaintiff often drove a red BMW that was owned by his brother at that time, although that fact alone did not establish probable cause to arrest plaintiff, the defendants decided to falsely arrest plaintiff and charge him committing that crime, solely based upon the fact that plaintiff drove a red BMW at the time..

21. On July 31, 2021, at 4:00 am plaintiff was lawfully present inside of his apartment located at 3901 Nostrand Avenue at which time the defendant police officers forcefully entered plaintiff's apartment, unlawfully searched, handcuffed, and falsely arrested plaintiff, without probable cause or legal justification.

22. The individually named defendant police officers also unlawfully searched plaintiff's apartment and seized plaintiff's vehicle without any legal basis.

23. The defendant police officers transported plaintiff to the 70th Precinct against his will whereat plaintiff was unlawfully searched, fingerprinted, photographed, and detained in a filthy holding cell for many hours.

24. Plaintiff spoke with the defendant police officers at the 70th Precinct whereat plaintiff was informed that the vehicle he drives was involved in a crime where an individual exited plaintiff's vehicle and fired a gun at another individual.

25. The defendant police officers told plaintiff that they arrested him because they believed he was the individual who fired the gun and they were going to charge him with attempted murder, unlawful possession of a firearm, amongst other crime.

26. The defendant police officers advised plaintiff that the crime occurred a couple of weeks earlier on July 14, 2021.

27. Plaintiff advised defendants that he did not possess the red BMW on July 14, 2021, because he rented the vehicle to someone during that time period and did not have possession of the vehicle on the date the crime was allegedly committed.

28. . Plaintiff told the defendant police officers the identity of the individual he rented the vehicle to at the time the crime defendants were investigating was allegedly committed.

29. Plaintiff told the officers that he could document the fact that he rented the vehicle to this person at the time the crime allegedly occurred.

30. However, the defendant police officers did not appear to listen to plaintiff and did not take plaintiff's alibi seriously.

31. The defendants continued to detain plaintiff without probable cause even though he had an alibi.

32. The defendant officers provided the Kings County District Attorney's Office with false, misleading, and incomplete evidence to explain why the defendants purportedly probable cause had to arrest plaintiff and charge him with felony offenses.

33. After plaintiff was unlawfully detained at the precinct for many hours, he began to feel very ill because he was experiencing severe anxiety and emotional distress due to the fact that the defendant officers falsely arrested him and charged him with extremely serious crimes that he did not commit.

34. Plaintiff was transported to from the precinct to Kings County Hospital to receive medical treatment for what he was experiencing.

35. After plaintiff was released from the hospital, he was transported to Kings County Central Booking whereat the unlawful detention continued for many hours.

36. Plaintiff was arraigned in Kings County Criminal Court on August 1, 2021 and charged with committing crimes he did not commit and for which defendants lacked probable cause to accuse him of committing, including but not limited to Attempted Murder in the Second Degree, Attempted Assault in the First and Second Degrees, and Criminal Possession of a Weapon in the Second, Third, and Fourth Degrees.

37. At arraignment plaintiff was remanded into the custody of the Department of Corrections and he was sent to the Otis Bantum Correctional Center ("OBCC") on Riker's Island whereat the unlawful detention continued.

38. The living conditions for the prisoners at the OBCC facility on Riker's Island were extremely dangerous and inhumane during the time period when plaintiff was sent to that facility.

39. Plaintiff was detained in a crowded cell located in the intake area of the facility for the entire time he was detained at the facility and was never transferred to a housing area.

40. The cell where he was detained did not have any beds and only had one toilet which was overflowing onto the floor where the prisoners were expected to sleep.

41. Additionally, there were many fights between prisoners in the cell, in part to how little space there was in the cell.

42. Plaintiff was attacked by gang members in the holding cell while he was detained on Riker's Island, and he was subsequently sprayed with large amounts of chemical agents by the Correction Officers for the purpose of stopping the gang members from attacking plaintiff.

43. However, the chemical spray burned plaintiff's skin and made it difficult for plaintiff to breathe.

44. Additionally, Correction Officers subjected plaintiff to the use of excessive to break up the attack on plaintiff and caused plaintiff to suffer additional pain and injuries throughout his body.

45. Plaintiff was slashed across his back with some sort of weapon by other prisoners, and the slash caused plaintiff to suffer permanent scarring on his lower back and buttocks.

46. Plaintiff was released from Riker's Island on his own recognizance on August 5, 2021, because he was not indicted by a grand jury.

47. The experience of being charged with serious crimes that he did not commit and being sent to Riker's Island where he was housed in inhumane conditions was psychologically traumatic for plaintiff to experience.

48. Plaintiff was extremely traumatized by his experience at Riker's Island and because he was facing very serious felony charges for crimes he did not commit.

49. Plaintiff was admitted to the hospital for psychological treatment for 2-3 days because he had suicidal thoughts, was talking to himself, and he was seeing things that were not actually there.

50. After plaintiff was released from the hospital, he was required to appear in criminal court on multiple additional occasions before all charges were dismissed and sealed on December 2, 2021, after the Court granted a motion to dismiss and seal the charges in their entirety.

51. The criminal prosecution terminated in plaintiff's favor.

52. Plaintiff also paid money to retain a private criminal attorney to represent him in the underlying criminal matter.

53. At no time relevant herein did plaintiff commit a crime, nor did the police officer defendants possess an objective factual basis to establish probable cause to believe he committed a crime or violated the law.

54. The defendant police officers provided the Kings County District Attorney's Office with false, misleading, and incomplete evidence to support their purported basis for arresting plaintiff and charging him with crimes.

55. The false allegations made by the officers formed the basis for the criminal prosecution, without probable cause or legal justification.

56. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

57. Plaintiff was deprived of his Constitutional and common law rights when the individual defendants unlawfully searched, falsely arrested, maliciously prosecuted, subjected plaintiff to the use of excessive force and denied plaintiff the right to due process in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

58. At no time relevant herein did plaintiff commit a crime, or violate the law in any manner, nor did defendants possess an objective factual basis to establish probable cause to accuse plaintiff of committing a crime or violating the law in any manner.

59. Defendants unlawfully searched, falsely arrested, maliciously prosecuted, and denied plaintiff the right to due process, without probable cause or legal justification.

60. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, searched, questioned, frisked, falsely arrested, subjected plaintiff to the use of excessive force,, maliciously prosecuted, and denied plaintiff the right to due process in violation of the Fourth and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

61. The individually named defendant police officers have significant histories of having complaints filed against them by members of the public for engaging in police misconduct as NYPD police officers and violating the Constitutional Rights of members of the public, but the discipline by the NYPD on each of those occasions was insufficient to prevent the officers from continuing to engage in such misconduct because the NYPD does not sufficiently investigate allegations that a police officer violated the Constitutional Rights of an individual and did not sufficiently punish defendants for the misconduct they previously engaged in.

62. Numerous complaints and lawsuits have been filed against the individually named defendants by members of the public throughout their careers, but most of the time the NYPD conducted a cursory investigation into the complaints and concluded that it did not possess enough evidence to determine whether defendants engaged in misconduct and therefore did not discipline them for many of the complaints made against them.

63. Defendants have continued to violate the Constitutional Rights of members of the public because they never suffered any significant consequences for engaging in the unlawful behavior in the past and apparently feel as if they can continue engaging in the unlawful behavior without any serious consequences.

64. The deliberate indifference by the NYPD and defendant City of New York towards its officers and defendants when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because defendants knew that there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

65. Given defendants' histories of allegations of violating the Constitutional Rights of members of the public, defendants should not have been patrolling the streets of New York and/or supervising other officers at the time of plaintiff's arrest in this case, and plaintiff's rights may not have been violated if the defendant City of New York had properly investigated and disciplined defendants and other officers throughout the NYPD prior to the date of plaintiff's arrest in this case.

66. The City of New York is deliberately indifferent to and fails to properly address situations when NYPD officers have engaged in police misconduct and violated the rights of members of the public.

67. The unlawful search, false arrest, false imprisonment, malicious prosecution, excessive force, and denial of due process by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION**Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights**

68. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 67 with the same force and effect as if more fully set forth at length herein.

69. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully¹ searched, seized, denied the right to due process, falsely arrested, falsely imprisoned, and maliciously prosecuted, without probable cause, in violation of plaintiff's right to be free from an unreasonable seizure under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION**False Arrest and False Imprisonment**

70. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein.

71. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

72. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

73. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

74. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

75. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 74 with the same force and effect as if more fully set forth at length herein.

76. The illegal approach, pursuit, and search of plaintiff was employed by defendants herein, and terminated plaintiff's freedom of movement through means intentionally applied.

77. Defendants lacked probable cause to search plaintiff.

78. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

79. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

80. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Malicious Prosecution

81. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 80 with the same force and effect as if more fully set forth at length herein.

82. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York, and New York State common law.

83. Defendants commenced and continued criminal proceedings against plaintiff.

84. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

85. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

86. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

87. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

Unlawful Search

88. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 87 with the same force and effect as if more fully set forth at length herein.

89. The illegal search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

90. Defendants lacked probable cause to search plaintiff.

91. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

92. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

93. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment and Fourteenth

Amendment Rights

Denial of Due Process/ Right to a Fair Trial

94. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 93 with the same force and effect as if fully set forth herein.

95. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

96. Defendants filled out false and misleading police reports and forwarded them to the Kings County Criminal Court.

97. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process/ a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

98. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings, and deprivation of his Constitutional rights.

99. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment

Rights: Excessive Force

100. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 99 with the same force and effect as if more fully set forth at length herein.

101. The use of excessive force by defendants against plaintiff described herein was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

102. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

SIXTH CAUSE OF ACTION

Failure to Intervene

103. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 102 with the same force and effect as if more fully set forth at length herein.

104. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

105. Defendants failed to intervene to prevent the unlawful conduct described herein.

106. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of her safety, and he was humiliated and subject to other physical constraints.

107. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth, Fifth and Fourteenth Amendments to the United States Constitution

108. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 107 with the same force and effect as if more fully set forth at length herein.

109. Plaintiff was unlawfully searched, falsely arrested, maliciously prosecuted denied plaintiff the right to due process, and subjected plaintiff to the use of excessive force without an objective factual legal basis to seize, arrest, prosecute, and subject plaintiff to the use of force pursuant to an unconstitutional policy and practice of the NYPD that is deliberately indifferent to the fact that many NYPD officers, including defendants engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

110. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers unlawfully searched, falsely arrested, maliciously prosecuted denied plaintiff the right to due process, and subjected plaintiff to the use of excessive force, without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

111. The NYPD and Defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully and unconstitutionally violate the Fourth, Fifth, and Fourteenth Amendment Rights of members of the public.

112. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful unlawfully searched, falsely arrested, maliciously prosecuted denied plaintiff the right to due process, and subjected plaintiff to the use of excessive force of plaintiff because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully searched, falsely arrested, maliciously prosecuted denied plaintiff the right to due process, and subjected plaintiff to the use

of excessive force against members of the public when there is no factual basis to suspect the individual has committed a crime.

113. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

114. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

115. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally, search, and falsely arrest individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these searches, arrests, and criminal prosecutions, without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers searching, falsely arresting and maliciously prosecuting individuals without a factual basis supporting a legal reason to do so.

116. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City of New York, which is forbidden by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

117. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to: (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless seizures, searches, arrests, and prosecutions.

118. The City of New York has acted with deliberate indifference to the Fourth and Fourteenth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of her rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

119. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

JURY DEMAND

120. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff ERIC ROMULUS demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceed the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
July 31, 2024

By: David Hazan
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
July 31, 2024

David Hazan

DAVID M. HAZAN